
School name Audit Report Ashwicken Primary**Audit Date: 26.11.19****Report: Year 2 visit 2****DPE: Linda Mortimer****School member: Sophie Dickson, Headteacher**

1. Visit details

In addition to the audit walk, key GDPR documents and policies were reviewed and DPE best practice areas, compliance checklists, record of processing and compliance manager were discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also discussed and talked through (refer to section 7 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 6.1 below).

2. Audit walk findings

Action points

All action points from previous audit walk have been completed with the exception of:

Staffroom – privacy film to be applied to windows.

Action points from 26.11.19

Review of Policies - School will consider using DPE model GDPR Policy and Privacy Statement. Headteacher will present to Governing Body for ratification and adoption of these key documents.

Add more detailed list of third-parties to the DPE model Privacy Statement. This may be better presented as a separate appendix to the Privacy Statement to allow for easier editing in the future.

CCTV – school will consider using DPE model CCTV Policy and Access Log – refer to Knowledge Bank:

<https://kb.dataprotection.education/index.php/best-practice-library/best-practice/cctv>

General Policies / Guidance for all Staff – the Headteacher will consider using the Compliance Manager to upload and share documents such as; the Clear Desk and Screen, Data Breach Procedure, Information Classification Guidelines, Working Away from School, Photo & Video Guidelines with all staff.

Governance – Ensure that a governor is assigned to oversight of GDPR compliance (see 3.3 below).

School Office – CCTV main control box insecure. Look at ways in which this could be more securely stored ie in a locked cupboard. School will contact original provider of CCTV equipment for advice and guidance re secure storage options.

Attendance and After School Club registers detailing student first names and surnames in an open box file. Please ensure these are stored securely after use, at weekends and school holidays.

Add information at school reception to inform visitors where they can access the school's privacy statement from i.e. school website (not discussed during visit).

Year 1 & 2 Classroom – computer left unlocked in an empty classroom. Remind staff of the importance of 'Leave it, Lock it'. Posters that can be found on Knowledge Bank Drip Feed will help remind staff to lock computers.

Staffroom – pigeon holes are located in the room adjoining the staffroom. A partially completed overtime claim form which could be easily accessed, was found detailing personal information. Please remind staff that such information should be stored securely.

Other Considerations:

Introduce the best practice guide that can be displayed and used to support raising staff awareness:
<https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guide>

Review the school's Best Practice / Compliance Checklists found on Knowledge Bank, using the link below. The school is progressing with the first 3 areas but needs to make a start on the remaining six areas covered in the checklists.
<https://kb.dataprotection.education/component/dpe/dashboard>

The teacher in charge of PE has now been provided with a school camera to record sporting events. Please ensure that this member of staff no longer uses her personal device for this purpose.

3. Compliance actions that should now be completed

Initial documents:

- **Privacy Notice**
- **GDPR Policy**
- **Data Breach Procedure**
- **SAR procedure**
- **Photo and Video consent, guidelines and records**

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. If using GDPRiS this should also be kept updated. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

3.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf

- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

3.2. Staff training

GDPR training should be completed and documented. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

3.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

3.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

4. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

5. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#)).

The school now has a new server in place. Please check with the ICT Technician where the data stored on the server is backed up to. Is there a 'virtual' server in place for this purpose.

6. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

6.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

7. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>